Education, 73 LRRM 2237 (Cir. Ct. Wayne County). The plaintiffs appealed, and while their appeal was pending the Michigan Supreme Court ruled in *Smigel* v. *Southgate Community School Dist.,* 388 Mich. 531, 202 N. W. 2d 305, that state law prohibited an agency shop in the public sector. Accordingly, the judgment in the *Warczak* case was vacated and remanded to the trial court for further proceedings consistent with the *Smigel* decision.

Meanwhile, D. Louis Abood and other named teachers had filed a separate action in the same state trial court. The allegations in the complaint were virtually identical to those in *Warczak,*[5] and similar relief was requested.[6] This second action was held in abeyance pending disposition of the *Warczak* appeal, and when that case was remanded the two cases were consolidated in the trial court for consideration of the defendants' renewed motion for summary judgment.

On November 5, 1973, that motion was granted. The trial court noted that following the *Smigel* decision, the Michigan Legislature had in 1973 amended its Public Employment Relations Act so as expressly to authorize an agency shop. 1973 Mich. Pub. Acts, No. 25, codified as Mich. Comp. Laws § 423.210 (1)(c).[7] This amendment was applied retro-

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to state a claim upon which relief can be granted. See *Bielski* v. *Wolverine Ins. Co.,* 379 Mich. 280, 150 N. W. 2d 788; *Hiers* v. *Brownell,* 376 Mich. 225, 136 N. W. 2d 10; *Handwerk* v. *United Steelworkers of America,* 67 Mich. App. 747, 242 N. W. 2d 514; *Crowther* v. *Ross Chem. & Mfg. Co.,* 42 Mich. App. 426, 202 N. W. 2d 577.

[5] The only material difference was that *Abood* was not a class action.

[6] The *Abood* complaint prayed for declaratory and injunctive relief against discharge of any teacher for failure to pay the service charge, and for such other relief as might be deemed appropriate.

[7] That section provides in relevant part:

"[N]othing in this act or in any law of this state shall preclude a public employer from making an agreement with an exclusive bargaining representative as defined in section 11 to require as a condition of employment that all employees in the bargaining unit pay to the